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**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 17-10

**AMENDMENTS TO REGULATIONS GOVERNING NVOCC NEGOTIATED RATE
ARRANGEMENTS AND NVOCC SERVICE ARRANGEMENTS**

COMMENTS OF PAUL F. CONNOR, JR.

I, Paul F. Connor, Jr., am employed as Vice President at John S. Connor, Inc., OTI No. 496NF, headquartered in Glen Burnie, MD. We operate five other branch locations in Maryland, Virginia, New Jersey and Kentucky.

NRA

John S. Connor made the decision to file and maintain our own tariff publishing early on. We were able to utilize an electronic process which helped streamline our internal operations while meeting the requirements. We feel it continues to be a burden to file the tariffs which essentially no one looks at anyway. We believe the NRAs, while not perfect, do add benefit to NVOCCs and their clients. Though we have not been actively utilizing the NRAs, we appreciate their function and thank the Commission for having issued the exemption.

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There are a number of concerns with the NRAs that have given us pause to utilizing them. One key concern is that the current FMC regulations do not permit NRAs to be amended, unlike the situation with tariffs and NSAs. We understand that this often creates difficulties in trying to keep our clients rates in line with the market. Due to believing this is inappropriate as well as inhibiting other client needs, we support further enhancements such as:

1. Flexibility to amend NRAs
2. Acceptance of an NRA by tendering cargo (no written requirement)
3. Expand ability to include broader economic terms to include:
 - Credit terms
 - Surcharges
 - Free time, waiting time, demurrage, detention and per diem
 - Minimum Volume Commitments
 - Service Standards

The above can represent additional client needs that would be beneficial to incorporate into an NRA.

NSA

We support the Commission's proposal to eliminate the necessity to have NVOCCs file NSAs.

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They place an undue burden on groups to file and to push through amendments. As is the case with tariffs in general, there is no discernable benefit in having them filed and the requirement just adds unnecessary costs and administrative burden.

Lastly, we strongly urge the Commission to eliminate the requirement for NVOCCs to file Rate Tariffs. They are an archaic method of pursuing rates when in today's market rates are requested by e-mail or accessed via web portals. As noted earlier, it continues to be a burden to file the tariffs which essentially no one looks at anyway and provide no discernable benefit.

DATED: January 29, 2018

Paul F. Connor, Jr.

Vice President

filed electronically with Secretary@fmc.gov.